HEADNOTE

"1. Compliance with the requirements set out in R. 206.2(b) to (e) RoP concerns the merits of the application for provisional measures, the examination of which is the responsibility of the judge and must be considered by the judge when making orders under Rules 209, 211 and 212 RoP.
2. The patent claim is not only the starting point, but the decisive basis for determining the protective scope of a European patent under Art. 69 EPC in conjunction with the Protocol on the Interpretation of Art. 69 EPC. The interpretation of a patent claim does not depend solely on the strict, literal meaning of the wording used. Rather, the description and the drawings must always be used as explanatory aids for the interpretation of the patent claim and not only to resolve any ambiguities in the patent claim. This does not mean that the patent claim merely serves as a guideline but that its subject-matter also extends to what, after examination of the description and drawings, appears to be the subject-matter for which the patent proprietor seeks protection. The patent claim is to be interpreted from the point of view of a person skilled in the art. In applying these principles, the aim is to combine adequate protection for the patent proprietor with sufficient legal certainty for third parties. These principles for the interpretation of a patent claim apply equally to the assessment of the infringement and the validity of a European patent.
3. A sufficient degree of certainty pursuant to R. 211.2 RoP, in conjunction with Art. 62(4) UPCA (see also Art. 9(3) Directive 2004/48/EC) requires that the court considers it on the balance of probabilities at least more likely than not that the Applicant is entitled to initiate proceedings and that the patent is infringed. A sufficient degree of certainty is lacking if the court considers it on the balance of probabilities to be more likely than not that the patent is not valid. The burden of presentation and proof for facts allegedly establishing the entitlement to initiate proceedings and the infringement or imminent infringement of the patent, as well as for all other circumstances allegedly supporting the Applicant's request, lies with the Applicant, whereas, unless the

> *subject-matter of the decision is the ordering of measures without hearing the defendant pursuant to Art. 60(5) in conjunction with Art. 62(5) UPCA, the burden of presentation and proof for facts concerning the lack of validity of the patent and other circumstances allegedly supporting the Defendant's position lies with the Defendant."*

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Application for provisional measures

PATENT
EP 4108782

Compositions and methods for analyte detection

KEYWORDS

Appeal
application for provisional measures
burden of proof
claim construction
examination of formal requirements
extent of protection
infringement
inventive step
novelty
person skilled in the art
provisional injunction
sufficient degree of certainty
summary proceedings
validity of patent

Rule 206 Application for provisional measures

SUMMARY
The Court of Appeal Luxembourg ruled on an application for provisional measures. The patent at issue relates to compositions and methods for analyte detection. According to the headnotes of the decision, when a court decides whether to grant provisional measures, it must assess whether the applicant meets all the legal requirements set out in the Rules of Procedure, which forms part of the substantive evaluation of the application. The patent claim serves as the decisive starting point for determining what a European patent protects, and interpreting that claim requires courts to consider the description and drawings as essential guides, not merely to resolve ambiguities but to understand the full scope of protection the patent proprietor intended to obtain. For provisional measures to be granted, the court must find on the balance of probabilities that it is more likely than not both that the applicant has the right to bring the case and that the patent is infringed, whereas the applicant bears the burden of proving these facts while the defendant bears the burden of proving any invalidity of the patent.